

2:00 PM

LINE: 2

25-CIV-00538

**MC HVAC, INC., A CALIFORNIA CORPORATION VS. MODERN TIMES CUSTOM BUILDERS INC.,
A CALIFORNIA CORPORATION;**

MC HVAC, INC., A CALIFORNIA CORPORATION

MODERN TIMES CUSTOM BUILDERS INC., A CALIFORNIA CORPORATION;

MARY ANN ROUSSO

PATRICK J. WHITEHORN

PLAINTIFF'S MOTION TO BE RELIEVED AS COUNSEL OF RECORD

TENTATIVE RULING:

The unopposed motion of Mary Ann Rousso to be relieved as counsel of record for plaintiff MC HVAC, Inc. is granted. Pursuant to CRC 3.1362(e), the order does not become effective until proof of service of a copy of the signed order on the client has been filed with the court.

2:00 PM

LINE: 3

25-CIV-01520

JOSHUA COTTONARO, ET AL VS. KRISTIN SPINDT

JOSHUA COTTONARO
KRISTIN SPINDT

ANDREW G. WATTERS
GRANT H. BAKER

DEFENDANT KRISTIN SPINDT'S DEMURRER TO SECOND AMENDED COMPLAINT

TENTATIVE RULING:

For the reasons stated below, Defendant Kristin Spindt's unopposed demurrer to the first, second, and third causes of action in Plaintiffs Josh Cottonaro's and Nicole Cottonaro's Second Amended Complaint is **SUSTAINED IN PART** and **OVERRULED IN PART**.

Defendant Kristin Spindt's request for judicial notice is **GRANTED**.

Defendant Kristin Spindt shall file an answer to the remaining causes of action no later than ten (10) days after entry of the formal order.

Defendant Kristin Spindt demurs to the first, second, and third causes of action in the Second Amended Complaint ("SAC") filed by Plaintiffs Josh Cottonaro and Nicole Cottonaro (collectively, the "Cottonaros") on the ground that none states facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).)

Generally, the SAC concerns an option addendum to a lease agreement under which the Cottonaros allegedly would have had the right to renew their tenancy, but which the landlords never executed. (Feb. 26, 2026, Second Amended Complaint ("SAC"), ¶¶ 6–13.) The Cottonaros allege they were surprised when the landlords terminated the tenancy and were "forced" to incur attorney fees to defend against an unlawful detainer action. (Id., ¶ 13.) The landlords, originally parties to this action, have since been dismissed with prejudice, leaving only claims against Spindt, who allegedly served as a dual agent for the Cottonaros and the landlords in the transaction. (SAC, ¶ 3; see Sept. 12, 2025, Request for Dismissal.)

LEGAL STANDARD

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to determine whether they state a cause of action under any legal theory as a matter of law. (*New Livable Cal. v. Association of Bay Area Gov'ts* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) A demurrer may be made to the entire complaint or to any of the causes of action therein. (Code Civ. Proc., § 430.50, subd. (a).)

To properly state a cause of action, a complaint must allege every element of that cause of action. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1134.) To be sustained, a "demurrer must dispose of an entire cause of action." (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)